**IN THE UNITED STATES DISTRICT COURT**
**FOR THE SOUTHERN DISTRICT OF ALABAMA**
**SOUTHERN DIVISION**

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| ESSENCE JACKSON,<br><br>Plaintiff,<br><br>v.<br><br>SHELL CHEMICAL LP,<br><br>Defendant. | CIVIL ACTION NO. 22-004478-CG-N |

**DEFENDANT'S MEMORANDUM OF LAW IN SUPPORT OF ITS MOTION TO DISMISS OR, IN THE ALTERNATIVE, FOR A MORE DEFINITE STATEMENT**

## INTRODUCTION

Plaintiff Essence Jackson asserts various claims against Shell Chemical LP citing a broad range of federal employment law statutes, including: Title VII of the Civil Rights Act of 1964 ("Title VII"), 42 U.S.C. § 1981 ("Section 1981"), the Americans with Disabilities Act ("ADA"), and the Family and Medical Leave Act ("FMLA").

Plaintiff's Complaint lacks the clarity and detail needed to put Shell on notice as to the nature and scope of her claims. First, plaintiff does not separate her claims for relief. Instead, she discusses them summarily in two separate, seemingly inconsistent paragraphs. Second, plaintiff's factual allegations are often lacking in detail, disjointed, and unclear. Third, and most important, plaintiff does not specify which of her factual allegations support each of her claims.

Indeed, Shell found it difficult to identify plaintiff's claims for this motion. As best as it can tell, Shell believes plaintiff is asserting the following claims:

- Title VII race-based disparate treatment claim;
- Unspecified Section 1981 claims;
- Title VII sex-based disparate treatment claim;

- ADA disability-based discrimination and failure to accommodate claims;
- FMLA claim "for interfering with protective activity";
- Unspecified retaliation claims; and
- Unspecified hostile work environment claim.

While courts should afford pro se plaintiffs a measure of leniency, defendants' due process rights must not be imperiled in the process. Here, plaintiff's allegations fail to meet even a lenient interpretation of the pleading standards enshrined in Fed. R. Civ. P. 8, *Iqbal*, and *Twombly*. Consequently, Shell respectfully requests that this Court DISMISS plaintiff's claims WITHOUT PREJUDICE. In the alternative, Shell asks this Court to order plaintiff to provide a more definite statement of her allegations.

**FACTUAL BACKGROUND**

Plaintiff was hired on or around October 11, 2017, and most recently worked for Shell as a Utility 2 Operator at its Shell Mobile Manufacturing site. (Dkt. 1, Statement of Facts ¶ 7.) According to plaintiff, in or around January of 2018, she was assigned to her first unit in which a "Neo Nazi Hate Symbol" was drawn on a piece of equipment. (*Id.* ¶ 8.) Plaintiff alleges the drawn symbol was reported to the senior unit operator, who ignored it, and that after reporting it, male Caucasian employees harassed her with racial comments. (*Id.* ¶¶ 8-9.) Plaintiff further alleges that in or around October of 2019, she became extremely uncomfortable and feared for her safety, so she went to Wes Mock, Production Manager, and Todd Jednat, Production Supervisor, to ask for their help in obtaining a transfer back to Louisiana. (*Id.* ¶¶ 10, 12.)

According to plaintiff, in or around November 2019, she and a co-worker were directed to a conference room and informed by leadership that the Mobile plant was up for sale. (*Id.* ¶ 11.) Plaintiff alleges Wes Mock and Karen Miller, General Manager, informed her that her transfer request would be honored because the request was made a month prior to the sale announcement. (*Id.*) Plaintiff further alleges that two other employees, Joe Waters and Warren Butler, learned of her transfer request from other co-workers. (*Id.* ¶ 12.) Plaintiff claims other employees resented her and began labeling her and criticizing her. (*Id.* ¶ 13.) Plaintiff contends

that in or around January or February of 2020, Jednat advised her that Shell Convent wanted her at their site. Plaintiff claims that at the time of her purportedly approved transfer, two Caucasian males, were also approved and transferred. (*Id.* ¶ 14.)

Plaintiff next alleges that in June of 2020, "during the pendency" of her "approved transfer," a Shell employee posted a New York Post article on their personal Facebook account titled *Trump Mobilizes US Military to End Unprecedent Riots* and commented: "This post make[s] me want to listen to the star spangled banner and let the bodies hit the floor." (*Id.* ¶ 15.) Plaintiff alleges she reported the Facebook post to Darren Wilson, Process Operation Specialist, and that when she reported to work the next day, two of her coworkers – Jeremy Hedegaard and Cory Clark – made remarks in her presence about how "people reporting what's on another person's facebook" needed to mind their business. (*Id.* ¶ 16.)

Separately, plaintiff claims Clark placed a "white power hand signal sticker" on his work locker, and "drives to work with a Confederate Flag on his truck." (*Id.* ¶ 17.) Plaintiff alleges she reported the sticker on Clark's locker and the flag on his truck to Wilson, and that after doing so, Jednat asked her to come to his office and allegedly explained that "those things didn't mean what [plaintiff] thought they meant." (*Id.* ¶ 17.)

Plaintiff further claims, among other things, her locker was vandalized and alleges someone told her that "she [would] not get that transfer now." (*Id.* ¶ 18.) Plaintiff claims that on June 7, 2020, someone from Human Resources informed her that she was the person in charge of investigating the reported Facebook post. (*Id.* ¶ 19.) Plaintiff further alleges that in July of 2020 a noose was hung in the Chiller Unit where she was training, and that she was advised not to say anything. (*Id.*)

Plaintiff alleges that in August of 2020, Jednat told her that "her transfer was a no-go because of her interview with Len Leblanc in March." (*Id.* ¶ 20.) Plaintiff claims that in October 2020, she was verbally attacked and disrespected by Hedegaard, who allegedly took her personal items that were in a chair and threw them all over the floor, and stated "Yo sh –t don't deserve to be in a chair" and that "she needed to bring her ass back to Louisiana." (*Id.* ¶ 22.) Plaintiff

further claims that two days later Hedegaard used profanity to express his hate of her race. Plaintiff claims that days later, another racially offensive drawing appeared in a portable toilet …

## LEGAL ARGUMENT

### I. FEDERAL PLEADING STANDARDS COUNSEL DISMISSAL

When considering a motion to dismiss, a court assumes the truth of only the factual allegations and draws only reasonable inferences that the defendant is liable for the misconduct alleged. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). Courts afford no presumption of truth to legal conclusions or recitations of the basic elements of a cause of action. *Franklin v. Curry*, 738 F.3d 1246, 1248 n. 1 (11th Cir. 2013). In other words, the court is neither bound by a plaintiff's legal characterization of the facts, nor required to ignore facts set forth in the complaint that undermine the plaintiff's claims.

The United States Supreme Court has instructed that a plaintiff may only avoid dismissal by pleading facts sufficient to "raise a right to relief above the speculative level." *Twombly*, 550 U.S. at 555. The Court explained that Fed. R. Civ. P. 8 "demands more than an unadorned, the-defendant-unlawfully-harmed-me accusation." *Iqbal*, 556 U.S. at 678. "A pleading that offers labels and conclusions or a formulaic recitation of the elements of a cause of action," or "naked assertion[s] devoid of further factual enhancement," will not be sufficient to state a claim for relief pursuant to Rule 8. *Id.* (quoting *Twombly*, 550 U.S. at 555, 557) (internal quotations omitted).

It is no longer sufficient that the complaint only "avoid foreclosing possible bases for relief; it must actually suggest that the plaintiff has a right to relief, by providing allegations that raise a right to relief above the speculative level." *Twombly*, 550 U.S. at 557. To do so, "a complaint must contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Twombly*, 550 U.S. at 557). This requires "more than a sheer possibility that a defendant has acted unlawfully." *Id.*

Further, "[d]etermining the plausibility of a claim is 'a context-specific task that requires the court to draw on its judicial experience and common sense.'" *Id.* at 679. Thus, "where the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged—but it has not 'show[n]'—'that the pleader is entitled to relief.'" *Id.* (quoting Fed. R. Civ. P. 8(a)(2)).

## II. PLAINTIFF'S DISABILITY-BASED CLAIMS ARE INSUFFICIENT

Although plaintiff did not separate her claims for relief under the ADA and does not make clear which allegations pertain to which claims, as best Shell can discern, plaintiff premises her ADA claim on Shell's failure to accommodate her alleged mental disability. More specifically, plaintiff asserts Shell violated the ADA by failing to accommodate her purported disability when it "consistently relocated [her] work area to place her in the most inconvenient position" and by "[r]equiring [her] to maintain the same production under the same pre-disable [sic] condition." (Dkt. 1, ¶ 35.) However, because plaintiff may have intended to advance an ADA disparate treatment claim, Shell addresses both theories.

### A. Disparate Treatment Disability Discrimination

To state a discrimination claim under the ADA, a plaintiff must allege sufficient facts to plausibly suggest: (1) that she suffers from a disability, (2) she is a qualified individual, and (3) that a "covered entity" discriminated against her on account of her disability." *Surtain v. Hamlin Terrace Found.*, 789 F.3d 1239, 1246 (11th Cir. 2015) (per curiam) (quoting *Cramer v. Florida*, 117 F.3d 1258, 1264 (11th Cir. 1997)).

## III. PLAINTIFF'S FMLA CLAIM IS EQUALLY INSUFFICIENT

The FMLA provides eligible employees the right to 12 weeks of leave for a serious health condition that renders the employee unable to perform the functions of their position. *Munoz v. Selig Enters., Inc.*, 981 F.3d 1265, 1274 (11th Cir. 2020); *see* 29 U.S.C. § 2612(a)(1). Additionally, it protects employees against interference with the exercise or attempted exercise of their substantive rights under the statute. 29 U.S.C. § 2615(a)(1).

To state an FMLA interference claim, an employee must allege that she was entitled to a benefit and was denied that benefit. To the extent plaintiff claims FMLA retaliation, …

**IV. PLAINTIFF'S TITLE VII CLAIMS ARE ALSO LACKING**

Plaintiff asserts the following Title VII claims: race and sex-based disparate treatment, hostile work environment, and retaliation. Title VII makes it unlawful for an employer to "fail or refuse to hire or to discharge any individual or otherwise discriminate against any individual with respect to [her] compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin." 42 U.S.C. § 2000e-2(a)(1).

**V. PLAINTIFF DID NOT EXHAUST HER ADMINISTRATIVE REMEDIES**

In addition, plaintiff's Title VII disparate treatment and ADA claims are barred for failure to exhaust administrative remedies. It is well-settled that filing an administrative … was not approved to transfer – in or around August of 2020. Giving plaintiff the benefit of the doubt that she was notified on August 31, 2020, she would then have been required to file a charge by March 1, 2021. Because plaintiff's Charge was not submitted until at least November 8, 2021, her claims for race and gender-based disparate treatment and ADA failure to accommodate are untimely and must be dismissed.

**VI. MOTION FOR A MORE DEFINITE STATEMENT**

In the alternative, and as for any of plaintiff's claims not dismissed by this Court, Shell moves for an order to be issued to plaintiff requiring her to cure certain deficiencies in her Complaint.

Federal Rule of Civil Procedure 12(e) permits a party to "move for a more definite statement of a pleading to which a responsive pleading is allowed but which is so vague or ambiguous that the party cannot reasonably prepare a response." Fed. R. Civ. P. 12(e). Indeed, a motion for a more definite statement will only be required when the pleading is "so vague or ambiguous that the opposing party cannot respond, even with a simple denial, in good faith or without prejudice to himself." *Burks v. Deepseafood*, No. 22-00008-TFM-B, 2022 U.S. Dist. LEXIS 141614, at *14 (S.D. Ala. Aug. 9, 2022). Rule 10(b) further provides that "a party must

state its claims . . . in numbered paragraphs, each limited as far as practicable to a single set of circumstances. Fed. R. Civ. P. 10(b). If doing so would promote clarity, each claim founded on a separate transaction or occurrence . . . must be stated in a separate count . . . ." *Id.*

Complaints that violate either Rule 8(a)(2) or Rule 10(b), or both, are often disparagingly referred to as "shotgun pleadings." *Weiland v. Palm Beach Cty. Sheriff's Office*, 792 F.3d 1313, 1320 (11th Cir. 2015). The Eleventh Circuit has identified four rough categories of shotgun pleadings: (1) those in which "each count adopts the allegations of all preceding counts, causing each successive count to carry all that came before and the last count to be a combination of the entire complaint;" (2) those that do not re-allege all preceding counts but are "replete with conclusory, vague, and immaterial facts not obviously connected to any particular cause of action;" (3) those that do not separate each cause of action or claim for relief into a different count; and (4) those that assert "multiple claims against multiple defendants without specifying which of the defendants are responsible for which acts or omissions, or which of the defendants the claim is brought against." *See id.* at 1321-23.

The Eleventh Circuit has repeatedly denounced shotgun pleadings. *See Jackson v. Bank of Am.*, 898 F.3d 1348, 1354 (11th Cir. 2018). *See also Davis v. Coca-Cola Bottling Co.*, 516 F.3d 955, 979 n. 54 (11th Cir. 2008). The Court has also been clear that a district court may dismiss an impermissible shotgun pleading on that basis alone. *Jackson*, 898 F.3d at 1357.

Here, plaintiff's Complaint is a clear example of an impermissible shotgun pleading insofar as it fails to separate out each independent cause of action, and, consequently, summarily relates all of plaintiff's allegations to all her claims. Therefore, Shell asks this Court to require plaintiff to replead her allegations in a manner such that plaintiff states each of her claims independently, followed by the allegations she asserts support each claim. To allow otherwise would prejudice Shell in its ability to effectively respond to plaintiff's claims and assert necessary affirmative defenses.

## CONCLUSION

For the foregoing reasons, Shell respectfully requests that plaintiff's Complaint be DISMISSED WITHOUT PREJUDICE. Or, alternatively, that plaintiff be required to make a more definite statement by curing the aforementioned deficiencies in her Complaint, and that the Court grant such other relief as it deems just and equitable.

Date: May 1, 2023

Respectfully submitted,

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## CERTIFICATE OF SERVICE

I hereby certify that on May 1, 2023, the foregoing was filed with the Clerk of Court using the CM/ECF system, which will send notification of the filing to all counsel of record.

s/ Chelsea J. Bodin